

Sealed Highlighted Open Grid Reply and Cross-Opposition

Filed: November 10, 2025 **Synthetic docket:** SYN-DMD-25-CV-0914 **Access:** Sealed exercise counterpart

Open Grid Archive submits this controlled reply to address DOE's use of inert semantic fields. Tamsin Roe and Leo Marr appear as fictional counsel. The filing contains only Condition-Aster, Sequence-Beryl, Value-Cinder, Role-Dovetail, Safety-Echo, and Channel-Fable; none has a real referent.

Open Grid accepts that an authentic implementation relation corresponding to Condition-Aster and Sequence-Beryl may be protected upon an adequate showing. It disputes the treatment of all Role-Dovetail, Safety-Echo, and Channel-Fable relationships as one safety category and the conclusion that every remaining administrative proposition is inseparable.

The supplemental release is central because it changed only the passage judgments, not the twelve-record, 200-page universe. Seventeen pieces of meaningful text emerged from eleven pages without exposing a controlled relation. That experience calls for a documented final review.

This counterpart has the same ten subject divisions as the public reply but different sentences and examples. Restricted access exists to facilitate comparison; the document offers no instruction or information about a real cyber practice.

Narrow Scope of the Technique Claim

The parties agree for these motions that the exercise playbooks satisfy the law-enforcement-purpose threshold. They also agree that public knowledge of a broad response concept does not necessarily disclose the implementation used in a particular approved framework.

Condition-Aster and Sequence-Beryl model the types DOE says form an implementation relationship. Open Grid does not request an authentic version of that relation where the agency establishes its operational function. Value-Cinder models a guideline field for which DOE must articulate the statutory circumvention risk.

The issue is what else those relations protect. An edition date, archival owner, approval statement, or general purpose can often be stated without identifying either controlled type. DOE's contextual explanation does not consistently show why a retained heading or sentence would reveal the arrangement.

Open Grid asks for separate treatment, not exposure. The Court may uphold a supported controlled relation and still require DOE to identify every coherent administrative proposition that survives removal. A finding that the framework contains protected content should not become a complete-document rule.

Functional Categories Require Functional Differences

The controlled samples reveal several uses of the same inert labels. Role-Dovetail can mark publication responsibility or an asserted protective assignment. Channel-Fable can mark document distribution or a controlled coordination category. Safety-Echo can appear in a general policy reference or in the relationship DOE emphasizes under 7(F).

Those contexts are not automatically equivalent. A lawful categorical approach must explain the common function and tie disclosure of that function to the exemption's protected interest. The six invented words do not supply that reasoning merely by appearing in a controlled filing.

DOE says its reviewers formed categories from the documents. Its public account remains too general to show which uses were grouped and why surrounding text shares the predicted harm. The controlled account adds placement but often repeats the result instead of describing the functional bridge.

Open Grid does not demand a real title or contact. The agency could distinguish archival work from protective work at a safe level. It could also explain when Channel-Fable's relation, rather than the existence of a communication field, matters. Those distinctions are necessary for meaningful de novo review.

Controlled 7(F) Objection

DOE associates Role-Dovetail, Safety-Echo, and sometimes Channel-Fable with the possibility of interference directed at protective personnel. Open Grid agrees that 7(F) can protect unnamed individuals. It contests whether the record demonstrates a reasonable expectation of danger for the breadth of the asserted group.

The label relationship provides no description of how disclosure would affect a human function. A matrix association might be relevant, yet a publication-custody entry using Role-Dovetail is different. A controlled communication type might implicate safety in one context and ordinary document circulation in another.

The agency must define the category by those functions and then state the expected harm. It cannot begin from the protective subject of the collection and assume that every role or channel relation creates danger. That reasoning would give 7(F) subject-matter coverage rather than content-specific application.

The Court can demand a more precise explanation without identifying anyone or exposing a real response. These labels show that safe abstraction is possible. They do not prove the conclusion DOE asks the Court to draw.

Controlled Segregability Analysis

The fifth semantic division focuses on the statutory requirement to release meaningful nonexempt portions. A reviewer must ask what proposition remains after a controlled relation is removed. The answer depends on the sentence, not merely the document family.

If an administrative statement says an edition was approved on a date, removal of Role-Dovetail may leave the approval fact intact. If a heading identifies how Condition-Aster connects to Sequence-Beryl, preserving it may expose implementation. The necessary distinction is semantic and can be explained without publishing a value.

DOE's protocol recognizes this inquiry but reports many outcomes in aggregate. It states that remaining text would reveal placement or lack meaning without tying that determination to sufficiently specific passages. The controlled samples show candidates whose general administration is readily separable from the labels.

Open Grid seeks no orphaned connective words. It seeks complete ideas about revision, ownership, approval, retention, and general coordination. The seventeen later disclosures demonstrate that such ideas can be missed when a review starts from a categorical presumption. A final supported pass is therefore required.

Significance of RLS-OG-002

The supplemental work reused preserved exports and confirmed the same twelve responsive records. It did not alter the family totals, the 200 source pages, or the identity of the three completely withheld records. It changed the treatment of text within eleven already-produced images.

Six replacement images gained two passages and five gained one, producing seventeen new passages. The content addressed administrative ownership, captions, approval status, version history, archival directions, and coordination at a nonoperational level. No controlled label or relationship was revealed.

Open Grid treats that result as evidence, not an accusation. It demonstrates that a focused passage review can distinguish public administration from claimed protected functions. It also shows why a declaration of completeness requires enough detail for testing.

DOE's willingness to correct the record is appropriate. But a second assertion is not conclusive simply because it followed a correction. The Court should require a documented connection between each remaining functional category, its exemption, and the decision that no meaningful text can be separated.

Records Withheld in Their Entirety

The current and superseded decision trees and the current escalation matrix account for fifty-four completely withheld pages. DOE says controlled relations organize them so densely that headings disclose structure and other fragments repeat facts already public.

That rationale may apply to particular headings or sequences. It does not establish by itself that no approval statement, revision note, ownership entry, or archival direction has independent value. The declarations should say whether such content exists and why each candidate cannot be released.

Condition-Aster, Sequence-Beryl, and Value-Cinder allow a safe in-camera account of organization. The Court can preserve all source material while DOE provides a better explanation. Open Grid does not ask the Court to experiment with public disclosure to discover whether a relation is exposed.

Complete withholding is permissible when the record supports it. Because the current account uses “permeates” and “meaningless” at a broad level, summary judgment should await the particularized basis that permits review.

Judicial Access on the Twin Record

The public counterparts enable broad understanding, but they do not relieve the Court of making specific sealing findings. Each controlled exhibit has a distinct judicial role. A sample matrix presents evidence; a declaration authenticates review; a memorandum advocates a legal result.

DOE groups the set under a common interest in category relationships. Open Grid asks whether each entire document must remain closed, whether narrower passage treatment is feasible, and why the proposed duration is necessary. The existence of inert labels does not itself answer those questions.

An interim seal can protect the controlled comparison while the Court decides the motions. A final order should identify the record or segment, explain the interest, address public counterparts and partial closure, and set a duration connected to litigation need.

This approach keeps the public versions available and avoids unnecessary exposure. It also preserves a reviewable access decision rather than allowing the subject of the case to supply aggregate findings.

Relief Without Disclosure

The Court can deny DOE's cross-motion in part without ordering release of any controlled relationship. It can sustain adequately supported 7(E) implementation material, require refinement of the 7(F) functions, and direct a final documented segregability review.

DOE can respond using semantic descriptions. It can distinguish Role-Dovetail's archival and protective uses, explain any relation involving Safety-Echo or Channel-Fable, and state why release could reasonably produce the asserted harm. It can identify administrative candidates and their line-review results.

The Court can also maintain temporary controlled access while requiring document-specific sealing proposals. Public counterparts remain the default docket materials. This remedy respects every legitimate confidentiality concern advanced in the exercise.

Open Grid's position is therefore not a demand to choose disclosure over safety. It is a request to apply FOIA's burden and segregation rules to the actual categories, protecting what is proven and requiring support for what is not.

Conclusion

DOE has not yet supplied enough functional detail to sustain its entire 7(F) category or its final assertion that no additional meaningful text can be segregated. The Court should deny judgment on those portions and order a particularized review while preserving supported implementation relations.

Any sealing order should rest on findings directed to each judicial record, consideration of narrower alternatives, and a defined duration. Public twins should remain openly available. Controlled labels may stay restricted while the Court evaluates them.

Tamsin Roe and Leo Marr certify that this counterpart contains only the six approved inert words and independently composed legal analysis. It describes no system, technique, contact, protected person, or implementable act. The filing is part of a fictional exercise only.

Service was completed through the synthetic docket on Corin Pell on November 10, 2025. Open Grid renews the relief requested in its opening motion.